

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Bronx

-----X
JULISSA PENA,

Plaintiff,

vs.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE POLICE DEPARTMENT OF THE CITY OF
NEW YORK, POLICE OFFICER "JOHN" DIALLO BADGE
NUMBER 20608 OF THE 48th PRECINCT, POLICE OFFICER
"JOHN" REFAT BADGE NUMBER 19006 OF THE 48TH
PRECINCT, SUPERVISOR SARGENT "JOHN" DOXY OF THE
48TH PRECINCT,

Defendants.
-----X

Index No.: _____

Date Purchased: _____

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:

Place of Occurrence

Plaintiff resides at:

916 E. 179th Street

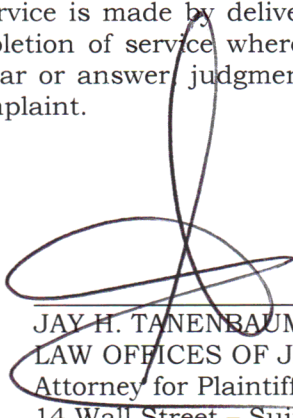
Bronx, New York 10460

County of Bronx

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 16, 2022



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-22J-0057

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
THE POLICE DEPARTMENT OF THE CITY OF NEW YORK
One Police Plaza
New York, New York

POLICE OFFICER "JOHN" DIALLO BADGE NUMBER 20608
c/o 48th PRECINCT
450 Cross Bronx Expressway
Bronx, New York 10457

POLICE OFFICER "JOHN" REFAT BADGE NUMBER 19006
c/o 48TH PRECINCT
450 Cross Bronx Expressway
Bronx, New York 10457

SUPERVISOR SARGENT "JOHN" DOXY
c/o 48TH PRECINCT
450 Cross Bronx Expressway
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Bronx

VERIFIED COMPLAINT

-----X
JULISSA PENA,

Index No.:
Date Purchased:

Plaintiff,

vs.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE POLICE DEPARTMENT OF THE CITY OF
NEW YORK, POLICE OFFICER "JOHN" DIALLO BADGE
NUMBER 20608 OF THE 48th PRECINCT, POLICE OFFICER
"JOHN" REFAT BADGE NUMBER 19006 OF THE 48TH
PRECINCT, SUPERVISOR SARGENT "JOHN" DOXY OF THE
48TH PRECINCT,

Defendants.

-----X

Plaintiff, by his attorney, **Law Offices of Jay H. Tanenbaum**, complaining of the
Defendants, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, AND THE FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION.

3. This Court has jurisdiction over each federal claim pursuant to concurrent jurisdiction.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in Bronx County in the State of New York.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff, Julissa Pena, is, and has been, at all relevant times, a resident of Bronx County, City and State of New York.

7. Defendant, The City of New York, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, New York City Police Department, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, The City of New York, maintains the New York City Police Department a/k/a The Police Department of the City of New York, a duly authorized public authority and/or police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

10. That at all times hereinafter mentioned, defendant, P.O. "John" Diallo, was and still is employed with defendant, New York City Police Department.

11. That at all times hereinafter mentioned, defendant, P.O. "John" Refat, were and still is employed with defendant, New York City Police Department.

12. That at all times hereinafter mentioned, defendant, Sargent "John" Doxy, was and still is employed with defendant, New York City Police Department.

13. That prior hereto on September 1, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any

adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

14. That a hearing was held by the defendant, The City of New York, pursuant to Municipal Law 50-h on November 10, 2022.

15. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

FACTS

16. On August 11, 2022, at approximately 8:50 a.m., plaintiff, Julissa Pena, was lawfully at or near East 179th Street and Honeywell Avenue, in the County of Bronx, City and State of New York.

17. At that time, Defendants, P.O. "John" Diallo, P.O. "John" Refat and Sargent "John" Doxy arrived at the location on duty.

18. Without any legal justification or excuse, the defendant, P.O. "John" Diallo, unlawfully interrogated, pointed gun, detained, used excessive force and arrested the plaintiff.

19. Without any legal justification or excuse, the defendant, P.O. "John" Refat, unlawfully interrogated, pointed gun, detained, used excessive force and arrested the plaintiff.

20. Without any legal justification or excuse, the defendant, Sargent "John" Doxy, unlawfully interrogated, pointed gun, detained, used excessive force and arrested the plaintiff.

21. Plaintiff was not engaged in any unlawful or suspicious activity.

22. Nonetheless Plaintiff was interrogated, gun pointed, detained, assaulted and arrested by Defendant, P.O. "John" Diallo, without any legal justification or excuse.

23. Nonetheless Plaintiff was interrogated, gun pointed, detained, assaulted, and arrested by Defendant, P.O. "John" Refat, without any legal justification or excuse.

24. Nonetheless Plaintiff was interrogated, gun pointed, detained, assaulted, and arrested by Defendant, Sargent "John" Doxy, without any legal justification or excuse.

25. At no time on August 11, 2022, did Plaintiff commit or violation of the law.
26. At no time on August 11, 2022, did defendants possess probable cause to arrest the Plaintiff.
27. At no time on August 11, 2022, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.
28. As a result of the foregoing, Plaintiff, **Julissa Pena**, sustained personal, emotional and psychological distress and his constitutional rights.
29. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to be Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
30. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.
31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of Defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.
32. Defendants, collectively and individually, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF AGAINST INDIVIDUALLY NAMED DEFENDANTS FOR
FALSE ARREST AND FALSE IMPRISONMENT UNDER FEDERAL LAW, PURSUANT
TO 42 U.S.C. §1983.**

33. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

34. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

35. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear of his safety and he was falsely arrested without probable cause.

SECOND CLAIM FOR RELIEF FOR MUNICIPAL LIABILITY UNDER 42 U.S.C §1983

36. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

37. Defendants interrogated and searched the Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search and interrogation would jeopardize Plaintiff's liberty, well-being, safety and violate his constitutional rights.

38. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

39. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of the defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.

40. The foregoing customs, policies, usages, practices and procedures and rules of defendants, The City of New York and New York City Police Department, were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

41. Defendant, The City of New York, has grossly failed and train and adequately supervise its police officers in the fundamental of law of interrogation and search where an individual, especially as here, has not committed a crime.

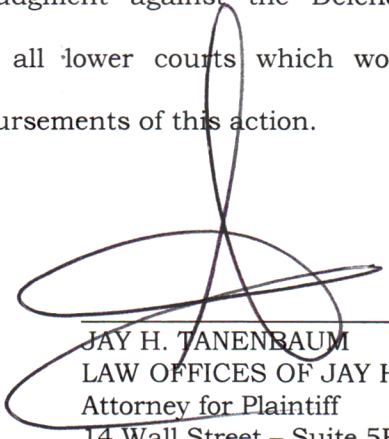
42. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

43. That as a result of the foregoing, Plaintiff **Julissa Pena** was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

44. That as a result of the foregoing, Plaintiff **Julissa Pena** was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
November 16, 2022



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765

ATTORNEY'S VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff(s) is that plaintiff(s) reside(s) in a county other than in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are under the penalties of perjury:

Dated: New York, N.Y.

Sgd/

JAY H. TANENBAUM

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF New York)SS:

Julissa Pena

Being duly sworn, deposes and says:

That deponent is the plaintiff(s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true except as to those matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes it to be true.

Sgd/

Julissa Pena

Sworn to before me this

16th day of November, 2022

Eliette A. Alvarez

ELIETTE A. ALVAREZ
Notary Public, State of New York
No. 01AL4726327
Qualified in Richmond County
Commission Expires November 30, 2022

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JULISSA PENA,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER "JOHN" DIALLO BADGE
NUMBER 20608 OF THE 48th PRECINCT, POLICE OFFICER "JOHN" REFAT BADGE NUMBER
19006 OF THE 48TH PRECINCT, SUPERVISOR SARGENT "JOHN" DOXY OF THE 48TH
PRECINCT,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

TO:

LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
Tel No.: (212) 422-1765
Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the
Courts of New York State, certified that, upon information and belief and reasonable inquiry,
the contentions contained in the annexed document are not frivolous.

Dated: Wednesday, November 16, 2022

Signature

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM